

Passing the Sovereignty Test

If we decide that a test is more important than reaping the deal's gains, India retains the right to do it



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It was more than 50 years ago that we declared ourselves a sovereign democratic republic. We have redeemed our tryst with destiny on this score—we are an island of democracy, a republic for sure, and a sovereign nation who has ploughed its own course in the 60 years of its existence. Criticism that 123 Agreement compromises India's sovereignty is clearly a political argument. Treaties are solemn contracts between nation states that must be honoured—they do not detract from sovereignty—on the other hand, are a reaffirmation of it.

Much of the controversy over whether the Hyde Act 2006 would apply to India flows from the fact that if you ask the wrong question, you get the wrong answer. The atomic energy laws of the US forbid it from doing nuclear business with other non-nuclear countries that do not satisfy the safeguards in relation to "all" nuclear material. The definition of a "non nuclear" country is one which has not exploded a nuclear device before January 1, 1967. Although the US President has some powers of granting exemption from these provisions of the Atomic Energy Act 1954, since the conditions for that exemption are that it should subserve—in simple language—US security interests. Thus India would have had to join the safeguards regime in relation to "all" nuclear material—this would imply that it would have had to bring its non-civil nuclear programme under the scanner.

In order to deal with this impasse, a special law was passed in the US—commonly known as the Hyde Act. This law enables the US President to arrive at certain determinations as to India's honourable intentions in the use of nuclear technology, upon which he has the power to exempt India from the provisions of the atomic energy law. Thus exempted, the US would be able to enter into a treaty with India for dealing with nuclear material and technology without requiring India to come into the full safeguards regime. The safeguards would be limited to the use of nuclear material and technology so received. On its part, India would have to comply with safeguards in relation to this material and technology. The law also provides that if the President determines that India has exploded a nuclear device after this law is in place, all exemptions granted would cease to have effect.

It has been suggested that this law operates only in the US and thus it does not bind India, and thus, runs the argument, India is free to conduct a nuclear test. This argument is true—but then not quite! It is true that the Hyde Act does not apply to India—it was not meant to! It was to enable the US President to grant an exemption to the treaty with India from the operation of the Atomic Energy legal regime. These exemptions would cease if the President determines that India has exploded a nuclear device. The consequence would be that the agreement with India would have to be



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terminated. Once this agreement is terminated, consequences would follow. India would be contractually bound to return technology and material in the manner prescribed in the Agreement.

Undoubtedly, the 123 Agreement—like any agreement—involves some give and take. It seeks to strike a balance between India's position that it has a right to pursue its peaceful nuclear goals, and the position of the US and the Nuclear Suppliers Group (NSG) that only countries with full scope safeguards would qualify for nuclear cooperation. Thus the Hyde Act does not—as it cannot—directly prevent India from such an explosion—and therein lies the argument of sovereignty. It provides that the exemptions (and thereby the Agreement) would be rendered illegal if India indulges in such an adventure. In the ultimate analysis it would be for India to decide whether it wants to explode another nuclear device—at the cost of the 123 Agreement coming to an end. We can argue ad nauseam about the wisdom of such a deal—if we continue to fantasise that we are such a great nation that the world must bend to our will. If someday we decide that exploding yet another nuclear device is more important than reaping all the benefits that would arise from such an agreement, we would have the right to do so. Even if it be a folly, we would retain the right to commit it—and therein lies the litmus test of sovereignty.

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